

Approved as to
form only

Date: 6/29/21

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE COMMUNITY RECREATION AND EVENTS DEPARTMENT TO SUBMIT A PROPOSAL TO APPLY FOR AN OFFICE OF LOCAL DEFENSE COMMUNITY COOPERATION, DEPARTMENT OF DEFENSE, DEFENSE COMMUNITY INFRASTRUCTURE PROGRAM GRANT TO BUILD AN INDOOR SPORTS COMPLEX TO SUPPORT THE MILITARY FAMILY QUALITY OF LIFE INFRASTRUCTURE OF FRANCIS E. WARREN AIR FORCE BASE SERVICE MEMBERS AND THEIR FAMILIES."

WHEREAS, the Defense Community Infrastructure Program Grant, offered through the Office of Local Defense Community Cooperation, Department of Defense, is funded through the Fiscal Year 2021 National Defense Authorization Act and approved on May 14, 2021 by the Deputy Secretary of Defense; and

WHEREAS, the identified prioritization of funding is the enhancement of military value, enhancement of military installation resilience, and the enhancement of military family quality of life; and

WHEREAS, the Governing Body recognizes a joint community need for an indoor sports complex that serves Francis E. Warren Air Force Base, the Wyoming National Guard, and the citizens of Cheyenne; and can offer gymnastics, basketball, volleyball, and indoor turf sports; and

WHEREAS, the total estimated cost of the project is approximately Fifteen Million Dollars (\$15,000,000.00) and the sports complex project will be presented in a three-phased approach to allow for partial funding to build (1) a gymnastics facility, (2) a gymnasium to house three basketball courts, and (3) a fieldhouse with turf; and

WHEREAS, proposals must be construction ready within one year of the grant award and must be expended within five (5) years from the date of the grant award (Fiscal Year 2021 – Fiscal Year 2026); and

WHEREAS, a completed Memorandum of Understanding between the City of Cheyenne and Francis E. Warren Air Force Base will be in effect for the duration of the project; and

WHEREAS, a match is not required; however, the city has allocated funds and donated land west of the Cheyenne Ice and Events Center with an estimated value of One Million Two Hundred Thousand Dollars (\$1,200,000.00) toward the completion of this project; and

WHEREAS, if the proposal is accepted, the Governing Body of the City of Cheyenne Wyoming grants approval for the City of Cheyenne Community Recreation and Events Department to prepare and submit a complete application package.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that it is in support of this project and the City of Cheyenne Community Recreation and Events Department is hereby authorized to submit a proposal and subsequent application to apply for grant funding through the Office of Local Defense Community Cooperation, Department of Defense for Fiscal Year 2021 – Fiscal Year 2026.

BE IT FURTHER RESOLVED that the Mayor and City Clerk are authorized to execute any and all documents, including a grant agreement, to secure funding under the DOD Defense Community Infrastructure Program to the extent that such documents are consistent with this Resolution.

PRESENTED, READ, AND ADOPTED this _____ day of _____, 2021.

Patrick J. Collins, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk

DEPARTMENT OF DEFENSE
Announcement of Federal Funding Opportunity

AGENCY: Office of Local Defense Community Cooperation, Department of Defense

ACTION: Federal Funding Opportunity

SUMMARY: This Federal Funding Opportunity announces an opportunity to obtain funding from the Office of Local Defense Community Cooperation (formerly the Office of Economic Adjustment) to assist States and local governments, and not-for-profit, member-owned utility services in addressing deficiencies in community infrastructure supportive of a military installation under the Defense Community Infrastructure Program. This notice includes proposal requirements, the deadline for submitting proposals, and the criteria that will be used to competitively select proposal respondents to apply for a grant from the approximately \$60 million available in Fiscal Year 2021 appropriations for this Program. The Fiscal Year 2021 National Defense Authorization Act established the following order of prioritization for community infrastructure projects under the Defense Community Infrastructure Program: enhancement of military value, enhancement of military installation resilience, and enhancement of military family quality of life. The Deputy Secretary of Defense approved this program on May 14, 2021. Proposals submitted under this notice must be construction-ready (able to “turn dirt”) within the first 12 months after award of a grant. Funds awarded through a grant are then available for expenditure within five (5) years from the date of the grant award, and all disbursements for expenditures must be concluded before the end of that five (5) year period.

The Office of Local Defense Community Cooperation may directly provide awards under this notice for projects owned by a State, local government, or a not-for-profit, member-owned utility service, or it may transfer funds to another Federal agency for award to one of these eligible entities. Entities other than those identified above as eligible to receive direct funding under this notice may partner with an eligible entity for project proposals.

SUPPLEMENTARY INFORMATION:

a. Federal Awarding Agency: Office of Local Defense Community Cooperation, Department of Defense.

b. Funding Opportunity Title: Defense Community Infrastructure Program.

c. Announcement Type: Federal Funding Opportunity.

d. Catalog of Federal Domestic Assistance (CFDA) Number: 12.600.

e. Key Dates: The Office of Local Defense Community Cooperation will hold a pre-proposal webinar at 3 p.m. EDT on or about June 2, 2021 to review the goals and objectives of this Federal Funding Opportunity notice and answer questions from interested respondents. Details about participation in this pre-proposal webinar are available on OLDCC.gov at the Defense Community Infrastructure Program link (<https://OLDCC.gov/defense-community-infrastructure-pilot-program-dcip>). Complete proposals for Defense Community Infrastructure Program grants must be received by the Office of Local Defense Community Cooperation by 5 p.m. PDT on July 12, 2021 (the Proposal Deadline). Proposals will be screened to ensure they are complete and from eligible entities. Complete proposals from eligible entities will be referred to a Defense Community Infrastructure Program review panel to evaluate against the criteria in Section E. to establish a ranked listing and provide to either the Under Secretary of Defense (Acquisition and Sustainment), or the Assistant Secretary of Defense (Energy, Installations and Environment) if confirmed at that time, for approval. Once approved, the listing will be provided to the Director, Office of Local Defense Community Cooperation, for invitation of a formal grant application on

or about August 13, 2021. All grant agreements must be countersigned prior to or about September 23, 2021, so appropriated funds can be obligated no later than September 30, 2021.

A. PROGRAM DESCRIPTION

Section 2391(d) of Title 10, United States Code (10 U.S.C. 2391), authorizes the Secretary of Defense to, “make grants, conclude cooperative agreements, and supplement funds available under Federal programs administered by agencies other than the Department of Defense, for projects owned by a State or local government, or a not-for-profit, member-owned utility service to address deficiencies in community infrastructure supportive of a military installation.” On May 14, 2021, the Deputy Secretary of Defense approved the Office of Local Defense Community Cooperation to implement this program with the eligibility criteria and grant process provided under this notice.

This notice identifies the criteria established for the selection of community infrastructure projects, noting most projects will likely reflect some combination of attributes that will enhance: (i) military value; (ii) military installation resilience; and/or, (iii) military family quality of life (including whether the impact of the community infrastructure on alleviating installation commuter workforce issues and the benefit of schools or other local infrastructure located off of a military installation that will support members of the armed forces and their dependents residing in the community) at a military installation.

The Consolidated Appropriations Act for Fiscal Year 2021 (PL 116-260) provides \$60 million to the Office of Local Defense Community Cooperation for this program, and these funds expire if they are not obligated prior to September 30, 2021.

Project proposals must include the endorsement of the local installation commander representing the installation benefitting from the proposed project, and will be competitively scored across review criteria identified in Section E., paragraph 1. of this notice. Local installation endorsement letters, among other information, should indicate the installation’s willingness to support the local community’s execution of the project (including the possible technical review of required National Environmental Policy Act environmental planning documents for the proposed project).

Federal funds may supplement, but cannot substitute for or otherwise supplant other available public funds that are available for the proposed project, including funds from the Defense Access Roads Program, U.S. Department of Transportation grants, etc. School construction projects cannot be for public schools on military installations that are identified on the Secretary of Defense 2018 Public Schools on Military Installations Prioritized List.

B. FEDERAL AWARD INFORMATION

Proposals will be scored by a Defense Community Infrastructure Program review panel against the selection criteria provided in Section E., paragraph 1., of this notice. The Office of Local Defense Community Cooperation will accept proposals through Grants.gov for the Defense Community Infrastructure Program through 5 p.m. PDT on July 12, 2021 (the Proposal Deadline). The Office of Local Defense Community Cooperation will invite successful respondents to complete a grant application on or about August 13, 2021, on the basis of their proposal’s ranking by a Defense Community Infrastructure Program review panel. To receive an award, an eligible respondent must submit both a successful proposal and an acceptable grant application.

No award under this program may exceed \$20 million, nor be less than \$250,000. Individual proposals requesting more than \$20 million will not be accepted for review, and all proposed projects must result in a complete and useable project. The final amount of each award will be determined by the Office of Local Defense Community Cooperation based on the recommendation of a Defense Community Infrastructure Program review panel, subject to the availability of appropriations, and due diligence in

applying the provisions of Title 2 of the Code of Federal Regulations, Part 200 - UNIFORM ADMINISTRATIVE REQUIREMENTS, COST PRINCIPLES, AND AUDIT REQUIREMENTS FOR FEDERAL AWARDS (2 C.F.R. 200).

Proposed projects in rural areas, including a city, town, or unincorporated area that have a population of not more than 100,000 inhabitants, will not be required to provide match funding. Project areas asserting rural eligibility must state explicitly in their proposal their status as a rural project area.

Projects in non-rural areas, including a city, town, or unincorporated area that has a population greater than 100,000 inhabitants must agree to contribute 30% or more of the funding for the proposed project.

Projects regardless may be eligible for a match funding waiver on the basis of national security needs or importance. In such instances, the proposer must assert in their proposal the basis for this waiver, including a signed statement from the cognizant Military Department Secretary (or if one is not confirmed, the Acting Military Department Secretary) attesting to the national security need / importance of the proposed project.

The total amount of funds available for awards may be reduced by amounts required to reimburse costs for program oversight and administrative services secured from non-Department of Defense Federal agencies. Project cost overruns are the responsibility of the recipient. Recipients of grant funding under this program will be subject to terms and conditions in the course of undertaking their project, including conformance with an agreed upon "Project Development Schedule." The Office of Local Defense Community Cooperation may terminate an award for non-performance, including failure to comply with the agreed upon Project Development Schedule, all grant terms and conditions, and /or where the Grantor determines the circumstances of the awarded project deviate from the information provided in the project proposal. All grants will be administered in accordance with 2 C.F.R. 200. Awards are subject to compliance with the National Environmental Policy Act. Entities invited to be applicants for grants under the Defense Community Infrastructure Program are responsible for providing information required to satisfy the National Environmental Policy Act, Council on Environmental Quality regulations, and any required state or local environmental regulations.

Awards under this notice will be issued in the form of a grant agreement in accordance with 31 U.S.C. 6302 and 6304.

C. ELIGIBILITY INFORMATION

1. Eligible Proposers

Eligible proposers include state or local governments and not-for-profit, member-owned utility services owning infrastructure outside of, but supporting, a military installation. Entities other than those identified above as eligible to receive direct funding under this notice may partner with an eligible entity for project proposals. The term military installation means a base, camp, post, station, yard, center, homeport facility for any ship, or other activity under the jurisdiction of the Department of Defense, including any leased facility, which is located within any of the several States, the District of Columbia, the Commonwealth of Puerto Rico, American Samoa, the Virgin Islands, the Commonwealth of the Northern Mariana Islands, or Guam. Such a term does not include any facility owned solely by the U.S. Coast Guard or those that would exclusively benefit a Coast Guard facility.

2. Cost Sharing or Matching

Proposed projects in rural areas, including a city, town, or unincorporated area that has a population of not more than 100,000 inhabitants, will not be required to provide match funding. Project areas asserting rural eligibility must state explicitly in their proposal their status as a rural project area.

Projects in non-rural areas, including a city, town, or unincorporated area that has a population greater than 100,000 inhabitants must agree to contribute 30% or more of the funding for the proposed project.

Projects regardless may be eligible for a match funding waiver on the basis of national security needs or importance. In such instances, the proposer must assert in their proposal the basis for this waiver, including a signed statement from the cognizant Military Department Secretary attesting to the national security need / importance of the proposed project.

These matching funds may not count as non-Federal match for other project funding, and the ability to use other Federal funds as a non-Federal match contribution will be determined by the authority and appropriation providing those funds as well as whether the relevant Grantor provides approval. Funding proposed as a source for the non-Federal share must be incurred and expended either within the proposed project period commencing from the date of award or no earlier than the date of enactment of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, August 13, 2018.

3. Eligible Projects

Eligible community infrastructure projects are any complete and useable transportation project, school, hospital, police, fire, emergency response, or other community support facility; or water, wastewater, telecommunications, electric, gas, or other utility infrastructure project, that:

- support a military installation;
- are owned by a state or local government or a not-for-profit, member-owned utility service;
- will enhance military value, military installation resilience or military family quality of life at the supported military installation (definitions for these enhancements are provided in Section E., paragraph 1.);
- endorsed by the local installation commander representing the installation benefitting from the proposed project; and,
- are construction-ready.

Proposed projects enhancing military family quality of life, where applicable, should specify how the impact of the enhancement project on community infrastructure alleviates installation commuter workforce issues and the benefit of schools or other local infrastructure located off of a military installation that will support members of the armed forces and their dependents residing in the community.

Proposers are specifically encouraged to highlight how / whether the project proposed supports broader efforts towards minimizing potential interruptions to the mission, including energy resiliency, and other efforts to better sustain the local mission.

The Fiscal Year 2021 National Defense Authorization Act established the following order of prioritization for infrastructure projects under the Defense Community Infrastructure Program: 1) enhancement of military value; 2) enhancement of military installation resilience; and, 3) enhancement of military family quality of life. A project is construction-ready if construction of the project may commence (turn dirt) within twelve (12) months of award, and all necessary final design and planning, development of bid solicitation documentation, Federal and state/local environmental planning, site control, confirmation of the availability of project funding, and local permitting actions are sufficiently complete.

Eligible activities include only hard construction and renovation costs outside of local installation property (defined as property not owned by the local installation or any component of the Department of Defense), including reasonable allowances for contingencies, and capital equipment affixed to the real

property with a depreciable life of not less than seven (7) years. Soft planning costs required for the planning, design and execution of the proposed project are allowable as a source for non-Federal match. However, all costs must have been incurred after the enactment of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, August 13, 2018.

4. Eligible Costs

Eligible costs include, but are not limited to, project administration, inspection, construction, utilities, and contingency costs required to execute the project as well as capital equipment affixed to the real property with a depreciable life of not less than seven (7) years. Soft planning costs required for the planning, design and execution of the proposed project are allowable as a source for non-Federal match. However, all costs must have been incurred and expended after the enactment of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, August 13, 2018.

Proposals that meet the aforementioned eligibility conditions will be scored by a Defense Community Infrastructure Program review panel against the selection criteria provided in Section E., paragraph 1. of this notice. The highest-ranking proposals will be invited to be applicants to submit formal grant applications, and grant awards will be made to successful applicants until the available appropriations are exhausted.

D. Proposal and Submission Information

1. Address to Request Application Package

Proposals must be submitted electronically as described in Section D., paragraph 4.

2. Content and Form of Proposal Submission

Each interested respondent must submit a complete proposal through Grants.gov not later than the Proposal Deadline date (see Section D., paragraph 4.). Grants.gov requires all proposers to complete the Standard Form 424. Please refer to the instructions provided with the Grants.gov Federal Funding Opportunity on how to complete the Standard Form 424.

A proposal may not exceed twenty (20) pages (single-sided, single-spaced with 1-inch margins, 11 point Times New Roman font, and including all maps, drawings and attachments—excepting the Standard Form 424, the independent cost estimate to validate the proposed project budget, and documents evidencing the project is construction-ready, the pages for which do not count towards this 20-page total) and shall include the following information:

A. Point of Contact: Name, phone number, e-mail address, and organization address of the respondent's primary point of contact;

B. Installation Need: A summary of the installation need, including which enhancement the proposal primarily addresses—military value, military installation resilience, or military family quality of life—and how the installation need degrades military value, military installation resilience, or military family quality of life at the local installation. Please refer to Section E., paragraph 2. for how military value will be considered in the scoring of all proposals. Information on this need must also include an assessment of the likely beneficiaries from the project, and specifically an assessment of the extent to which the total installation population of military service members and/or their families will benefit (e.g., 0-100% of the population). Proposers are also encouraged to highlight how / whether the project proposed supports broader efforts towards minimizing potential interruptions to the mission, including energy resiliency, and other efforts to better sustain the local mission;

C. Installation Endorsement: A letter of endorsement from the Commander of the local installation that includes (i) the existing conditions at the local installation to be impacted by development of the proposed project (and the extent to which the proposed project enhances the existing conditions), (ii) assessment of impact to the local installation should the proposed project not proceed, and (iii) a comparison of how those existing conditions rank against other military value, military installation resilience, or military

family quality of life infrastructure issues impacting the local installation. Local installation endorsement letters, among other information, should indicate the installation's willingness to support the local community's execution of the project (including the possible technical review of required National Environmental Policy Act environmental planning documents for the proposed project);

D. Project Description: A description of the proposed Defense Community Infrastructure Program project, including an explanation how the project addresses the installation need;

E. Project Engineering Information: A demonstration of the technical feasibility of the construction project;

F. Project Parties: Identification of other parties involved in the project to include contemplated grant sub-recipients as defined by 2 C.F.R. 200.1;

G. Grant Funds and other Sources of Funds: An overview and commitment of all funding sources, including non-Federal match source funding identified, requested under this notice, financial commitments for other Federal and non-Federal funds needed to complete the project (including any eligibility of Federal funds to be counted as the non-Federal share), documentation confirming the availability of committed funding (prior to confirmation of a grant award) and demonstrating that the requested funds do not supplant other available funds, and acknowledgement any cost overruns will be the obligation of the proposer. Proposing entity must also state its capability to obtain a surety bond as backstop ensuring successful completion of the project should cost overruns occur or other unforeseen financial impacts;

H. Uses of Construction Project Funds: The uses of project funding, including a total project cost estimate with major cost elements broken out for project administration, inspection, construction, utilities, and contingency costs. Soft planning costs required for the planning, design and execution of the proposed project are allowable as a source for non-Federal match. However, all costs must have been incurred after the enactment of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, August 13, 2018. All proposals shall include an independent cost estimate to validate the proposed project budget as well as and an explanation why a proposed project is not otherwise eligible for consideration under any existing Federal program (e.g., Defense Access Roads Program, Federal Transportation formula funding, etc.);

I. Project Development Schedule: A sufficiently detailed project schedule, including discussion of the project execution strategy as well as identification of milestones such as final permitting and compliance (if required), design and contracting, land acquisition and site control (if needed), start of construction and end of construction, demonstrating that the project can commence within twelve (12) months upon receipt of a grant and that the grant funds will be spent steadily and expeditiously once the project commences, and completed no later than five (5) years following the obligation of Federal funds;

J. Environmental Approvals: Indicate the status (e.g., receipt or reasonably anticipated receipt) of all environmental approvals necessary for the construction project to proceed to construction on the timeline specified in Section D., paragraph 2.I., Project Development Schedule, including all Federal, State, and local requirements, and completion of an appropriate environmental impact analysis in accordance with the National Environmental Policy Act (required);

K. State and Local Planning: If applicable, the inclusion of the construction project in the relevant State, metropolitan, and local planning documents, or a certification from the appropriate agency (e.g., Metropolitan Planning Organization) that the project will be included in the relevant planning document. The proposer should demonstrate that conformance with state and local planning requirements is attainable within twelve (12) months of grant award;

L. Grants Management: Evidence of the intended recipient's ability and authority to manage grants;

M. Submitting Official: Documentation that the Submitting Official is authorized by the proposer to submit a proposal and subsequently apply for assistance;

N. National Security Waiver Attestation (if appropriate): In instances where a waiver from local match is being requested due to national security needs / importance, a signed statement from the cognizant Military Department Secretary (or if one is not confirmed, the Acting Military Department Secretary) attesting to the national security need / importance of the proposed project; and

O. Attachments: In compliance with the overall application page limit (notwithstanding the length of the independent cost estimate to validate the proposed project budget and documents evidencing the project is construction-ready).

Proposals must be complete upon submission and proposals deemed to be incomplete will not be reviewed. To the extent practicable and subject to the page count restrictions of the proposal, the Office of Local Defense Community Cooperation encourages respondents to provide data and evidence of all project merits in a form that is publicly available or verifiable. At a minimum, for the purposes of Section E., paragraph 1., criteria d), respondents should include written affirmation that the proposed project meets the construction-ready standards identified in the proposal section.

3. Unique Entity Identifier and System for Award Management (SAM)

Each proposer invited to be an applicant for a grant is required to: (a) provide a valid Dun and Bradstreet Universal Numbering System (DUNS) number; (b) be registered in SAM before submitting its application; and, (c) continue to maintain an active SAM registration with current information at all times during which it has an active Federal award or an application or plan under consideration by a Federal awarding agency. The Office of Local Defense Community Cooperation may not make a Federal award to an applicant until the applicant has complied with all applicable unique entity identifier and SAM requirements and, if an applicant has not fully complied with the requirements by the time the Office of Local Defense Community Cooperation is ready to issue a Federal award, the Office of Local Defense Community Cooperation may determine that the applicant is not qualified to receive a Federal award and use that determination as a basis for making a Federal award to another applicant.

4. Submission Dates and Times

The Office of Local Defense Community Cooperation will hold a pre-proposal webinar at 3 p.m. EDT on or about June 2, 2021, to review the goals and objectives of the Federal Funding Opportunity and answer questions from interested respondents. Details about participation in this pre-proposal webinar are available on OLDCC.gov at the Defense Community Infrastructure Program link (<https://OLDCC.gov/defense-community-infrastructure-pilot-program-dcip>). Complete proposals for Defense Community Infrastructure Program grants must be received by the Office of Local Defense Community Cooperation through Grants.gov by 5 p.m. PDT on July 12, 2021, (the Proposal Deadline). After being screened to ensure proposals are from eligible proposers and are complete, all proposals will be scored by a Defense Community Infrastructure Program review panel against the criteria to establish an overall ranked listing and provide to either the Under Secretary of Defense (Acquisition and Sustainment), or the Assistant Secretary of Defense (Energy, Installations and Environment) if confirmed at that time, for approval. Once approved, the listing will be provided to the Director, Office of Local Defense Community Cooperation, for invitation of a formal grant application on or about August 13, 2021, accounting for the amount of the available appropriation based on the proposal rankings.

5. Intergovernmental Review

This program is eligible for coverage under Executive Order 12372, "Intergovernmental Review of Federal Programs," issued with the desire to foster intergovernmental partnership and strengthen Federalism by relying on State and local processes for the coordination and review of proposed Federal financial assistance and direct Federal development. The Order allows each State to designate an entity to perform this function. The official list of those entities is available at: <https://www.whitehouse.gov/wp-content/uploads/2020/04/SPOC-4-13-20.pdf>. Applicants located in States that provide a designated entity should contact them for more information on the process. States that do not provide a designated entity have chosen not to participate in the intergovernmental review process. Applicants located in States without a designated entity may submit the proposal directly. Funding is subject to the National Environmental Policy Act, and compliance with the National Environmental Policy Act is required.

6. Funding Restrictions

See Section C., paragraph 3., for information on eligible projects.

Federal funds may supplement and cannot substitute for or otherwise supplant other available public or private funds such as Defense Access Roads Program, Transportation grants, etc. School construction projects cannot be for public schools on military installations that are identified on the Secretary of Defense 2018 Public Schools on Military Installations Prioritized List.

7. Other Submission Requirements

Key Dates: The Office of Local Defense Community Cooperation will hold a pre-proposal webinar at 3 p.m. PDT on or about June 2, 2021, to review the goals and objectives of the Federal Funding Opportunity notice and answer questions from interested respondents. Details about participation in this pre-proposal webinar are available on OLDCC.gov at the Defense Community Infrastructure Program link (<https://OLDCC.gov/defense-community-infrastructure-pilot-program-dcip>). Complete proposals for Defense Community Infrastructure Program grants must be received by the Office of Local Defense Community Cooperation through Grants.gov by 5 p.m. PDT on July 12, 2021, (the Proposal Deadline). After being screened to ensure proposals are from eligible proposers and are complete, all proposals will be ranked by a Defense Community Infrastructure Program review panel and the Director, Office of Local Defense Community Cooperation, will assign project managers, inviting grant applications on or about August 13, 2021, following approval of the ranked proposals, and accounting for the amount of the available appropriation based on the proposal rankings.

E. APPLICATION REVIEW INFORMATION

1. Selection Criteria

Upon validating the eligibility of the interested respondent to apply for assistance, a Defense Community Infrastructure Program review panel, comprised of the military services, the Secretary of Defense, and the Office of Local Defense Community Cooperation, will rank proposals. A final proposal ranking will be provided to either the Under Secretary of Defense (Acquisition and Sustainment) or the Assistant Secretary of Defense (Energy, Installations and Environment) if confirmed at that time, for approval. Once approved, the listing will be provided to the Director, Office of Local Defense Community Cooperation, for invitation of a formal grant application. The proposed scoring criteria, with relative weights (the more responsive the proposal is to a need in these areas, the higher the score), are:

- a) (Consideration of military value.) Military value reflects the readiness and mission criticality of a particular installation. Each proposal will receive a score based on an already established military value ranking found in Military Department documents listed in Section E., paragraph 3. of this notice. The fact any proposed infrastructure project must not be on military-owned land, but be beneficial to a local installation, necessitates the embrace of a non-arbitrary value already in the public domain that is widely accepted (5-25 points);
- b) (What is the enhancement being proposed?) The extent to which a proposed project enhances the:
 - (i) military value (1) through preservation of training areas suitable for maneuver by ground, naval, or air forces to guarantee future availability of such areas to ensure the readiness of the Armed Forces, (2) through preservation of military installations in the United States as staging areas for the use of the Armed Forces in homeland defense missions, (3) through preservation of military installations throughout a diversity of climate and terrain areas in the United States for training purposes, (4) based on the impact on joint warfighting, training and readiness, and / or (5) based on contingency, mobilization, and future total force requirements at both existing and potential receiving locations to support operations and training;
 - (ii) resiliency of an installation to withstand extreme weather events, environmental conditions, and / or man-made events that would otherwise adversely affect the readiness and mission of that installation; or

(iii) military family quality of life (including the impact of the community infrastructure on alleviating installation commuter workforce issues and the benefit of schools or other local infrastructure located off of a military installation that will support members of the armed forces and their dependents residing in the community). Where there are instances military value, military installation resilience, and military family quality of life are interwoven and collectively enhance the readiness and local mission, the proposal must state what is the primary enhancement (0-45 points);

- c) (Is the proposed project “construction-ready?”) The extent to which the proposed project is “construction-ready” and feasible:

(i) proposed project development schedule evidencing ability to commence construction within twelve (12)-months of funding, including necessary final design and planning, development of bid solicitation documentation, completed Federal and state / local environmental planning, site control, and completed local permitting actions;

(ii) immediate availability of any non-Federal match funding; and,

(iii) reasonable, allowable, and allocable project budget, including costs are supported by third party cost validation of cost estimates.

For each of the following six (6) actions for which attestation / evidence is found in proposals demonstrating the construction-readiness of a project, the Defense Community Infrastructure Program review panel will assign points: 1. Final design and planning, 2. Development of bid solicitation documentation, 3. Federal and state/local environmental planning, 4. Site control, 5. Confirmation that non-Federal project funding is firmly committed and immediately available for expensing, and 6. Local permitting actions. (0-20 points); and

- d) (Why is the enhancement project needed?) The need for the proposed project and impacts to the readiness and mission of the installation if the project is not undertaken, factoring in the assessment of the local installation endorsement letter on (i) the existing conditions of the issue and (ii) how those existing conditions impact the local mission and readiness (0-10 points).

2. Scoring Considerations

The Department recognizes the distinct military value provided by both service-unique functions and those functions that are performed by more than one service. Accordingly, the Secretary previously established a process wherein the Military Departments are responsible for analyzing their service-unique functions, while Joint Cross-Service Groups, which include representatives from each of the military services, analyze the common business-oriented support functions. As such, the Defense Community Infrastructure Program review panel will defer to previous Military Department products identifying service-unique functions as well as Joint Cross-Service Groups identifying business-oriented support functions when considering military value of proposed project enhancements across all local installations. Section E., paragraph 3. of this notice lists the most current Military Department products identifying installation (facility) military value assessments to be used by the Defense Community Infrastructure Program review panel.

Scoring on criterion a) will be based on the previously established military value expressed as the installation’s quartile placement among its respective Service’s overall value (top 25% - 25 points, top 50% - 20 points, top 75% - 15 points, 100% - 10 points, or installation with no value score - 5 points) (5 - 25 points).

Scoring on criterion b) will be based on the choice of one criteria as the primary enhancement value for this Defense Community Infrastructure Program review panel and the review panel member’s affirmation that the enhancement associated with that value is appropriately identified / categorized. Projects that would score in more than one enhancement category will be assigned the score associated with the highest value enhancement, but only one value may be assigned for criterion b). Total points available for exceptional, medium and low enhancement scores will vary based on the primary enhancement

affirmed by the panel for military value, military installation resilience, and military family quality of life projects.

3. Military Department Documents Ranking Military Value by Installation

The following Department of Defense and Military Department documents will serve as reference for the assessment of scores for criteria a) as well as for the Defense Community Infrastructure Program review panel.

- Department of Defense Base Closure and Realignment Report, Vol I, III-XII, May 2005
- Department of the Army Analysis and Recommendations BRAC 2005, Volume III, May 2005
- Department of the Navy Supplemental Information to Volume IV of Department of Defense Base Closure Report (Department of the Navy Analyses and Recommendations), 20 May 2005
- Department of the Air Force Analysis and Recommendations BRAC 2005, Volume V, May 2005

4. Review and Selection Process

The composition of a Defense Community Infrastructure Program review panel, to include other Department of Defense and Military Department staff with technical proficiencies and relevant experience, will be finalized after the Proposal Deadline, based on the number and nature of proposals received. The Defense Community Infrastructure Program review panel will score all proposals against the Selection Criteria and provide a final ranked listing to either the Under Secretary of Defense (Acquisition and Sustainment), or the Assistant Secretary of Defense (Energy, Installations and Environment) if confirmed at that time, for approval. Once approved, the listing will be provided to the Director, Office of Local Defense Community Cooperation, to invite of a formal grant application on or about August 13, 2021, and award funding consistent with the ranked proposals on or about September 16, 2021. Recipients will need to accept the terms and conditions of these awards prior to or about September 23, 2021, so the funds can be obligated prior to September 30, 2021. Proposers invited to submit grant applications must also evidence steps to obtain a surety bond as a contingency against project cost overruns or other unforeseen financial impacts that might result in an unfinished project. Members of the Defense Community Infrastructure Program review panel will be subject to a non-disclosure agreement until released from the non-disclosure agreement by the Office of Local Defense Community Cooperation.

F. FEDERAL AWARD ADMINISTRATION INFORMATION

1. Federal Award Notices

In the event a grant is awarded, the successful applicant (Non-Federal Entity or Grantee) will receive a notice of award in the form of a grant agreement, signed by the Director, Office of Local Defense Community Cooperation (Grantor), on behalf of the Department of Defense. The grant agreement will be transmitted electronically. Grants must be awarded and the Grantee must accept the terms and condition of an award prior to or about September 23, 2021, so the funds can be obligated prior to September 30, 2021. Once obligated, the funding remains available for expenses for up to five (5) years, as approved by the Office of Local Defense Community Cooperation in the grant terms and conditions. Grantees will need to ensure Federal fund drawdowns are proportional to the non-Federal match portion for the total approved project budget.

2. Administrative and National Policy Requirements

Any grant awarded under this program will be governed by the provisions of the Office of Management and Budget circulars applicable to financial assistance and the Department of Defense's implementing regulations in place at the time of the award. A Grantee receiving funds under this opportunity and any consultant or pass-thru entity operating under the terms of a grant shall comply with all Federal, State, and local laws applicable to its activities. Federal regulations that will apply to an Office of Local

Defense Community Cooperation grant include administrative requirements and provisions governing allowable costs as stated in:

- 2 C.F.R. part 200, “Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards”
- 2 C.F.R. part 1103, “Interim Grants and Cooperative Agreements Implementation of Guidance in 2 C.F.R. part 200, “Uniform Administrative Requirements, Cost Principles, And Audit Requirements for Federal Awards”
- 2 C.F.R. part 25, “Universal Identifier and System for Award Management”
- 2 C.F.R. part 170, “Reporting Sub-award and Executive Compensation Information”
- 2 C.F.R. part 180, Office of Management and Budget Guidelines to Agencies on Government-wide Debarment and Suspension (Non-procurement), as implemented by the Department of Defense in 2 C.F.R. part 1125, Department of Defense Non-procurement Debarment and Suspension
- 32 C.F.R. part 28, “New Restrictions on Lobbying”
- Additional requirements applicable to construction awards include compliance with: National Environmental Protection Act (NEPA), National Historic Preservation Act, Buy American Act and Hire American Act

3. Reporting Performance

The Office of Local Defense Community Cooperation requires performance reports in intervals no less frequent than annual nor more frequent than quarterly except in unusual circumstances, for example, where more frequent reporting is necessary for effective monitoring or could significantly affect deliverables. The Office of Local Defense Community Cooperation’s notice of award will include a schedule to identify reporting type, frequency, and due dates. All performance reports will be submitted electronically. The following provides the required criteria for construction grant performance reports:

- The Office of Local Defense Community Cooperation will rely upon onsite technical inspections and certified percentage of completion data to monitor progress under awards and sub-awards for construction. The Office of Local Defense Community Cooperation may require additional performance reports when considered necessary.
- Significant developments. Events may occur between the scheduled performance reporting dates that have significant impact upon the supported activity. In such cases, the Grantee must inform the Office of Local Defense Community Cooperation as soon as the following types of conditions become known:
 - Problems, delays, or adverse conditions which will materially impair the ability to meet the objective of the Federal award. This disclosure must include a statement of the action taken, or contemplated, and any assistance needed to resolve the situation.
 - Favorable developments which enable meeting time schedules and objectives sooner or at less cost than anticipated or producing more or different beneficial results than originally planned.
 - The Office of Local Defense Community Cooperation retains the right to make site visits as warranted.

The final performance report will be due 90 calendar days after the period of performance end date. The final performance report must contain a summary of activities for the entire grant period. All required deliverables should be submitted with the final performance report. If a justified request is submitted by a Grantee, the Office of Local Defense Community Cooperation may extend the due date for any performance report.

Awards including acquisition or improvement to real property or personal property will be subject to the Office of Local Defense Community Cooperation Federal interest as well as property standards as specified in 2 C.F.R. 200.

Federal funds obligated through these grants awards won't be disbursed until: liquidity of non-Federal share of the approved project is evidenced; adequate performance bond for construction activity is posted; all signed sub-recipient agreements for any sub-recipient activity are provided; and, site control commensurate with the life of the approved enhancement is evidenced.

Evidence submitted by the non-Federal entity demonstrating completion of the project is required. Examples of such evidence include occupancy permits, operational licenses and permits, titles, etc.

4. Financial

The Grantee will submit an Office of Management and Budget Standard Form 425, "Federal Financial Report," electronically to the Office of Local Defense Community Cooperation. Submission due dates will be provided in the Office of Local Defense Community Cooperation's notice of award. Interim financial reports are required annually. The final financial report is due 90 days after the period of performance end date. Grantees will need to ensure their drawdown of Federal grant funds is proportional to the Federal / non-Federal share of the project total cost, ensuring non-Federal funds are expended proportional to amount of non-Federal funding in the project.

5. Post Award Reporting Requirements

The Grantee must comply with the post award reporting requirements reflected in Appendix XII to 2 C.F.R. 200-Award Term and Condition for Recipient Integrity and Performance Matters.

G. Federal Awarding Agency Contacts

Please access the Defense Community Infrastructure Program link on the Office of Local Defense Community Cooperation homepage (<https://OLDCC.gov/defense-community-infrastructure-pilot-program-dcip>) for general information about both the Defense Community Infrastructure Program and the proposal solicitation period. Requests for further information or for help with problems related to this program should be directed to: Mr. Daniel Glasson, Office of Local Defense Community Cooperation, 2231 Crystal Drive, Suite 520, Arlington, VA 22202-3711. Office: (703) 697-2130 or (if on Telework) (571) 733-7467. Email: daniel.l.glasson.civ@mail.mil.

The Office of Local Defense Community Cooperation homepage address is: <https://OLDCC.gov>.

H. OTHER INFORMATION

SUMMARY: This Federal Funding Opportunity announces an opportunity to obtain funding from the Office of Local Defense Community Cooperation (formerly the Office of Economic Adjustment) to assist States and local governments, and not-for-profit, member-owned utility services in addressing deficiencies in community infrastructure supportive of a military installation under the Defense Community Infrastructure Program. This notice includes proposal requirements, the deadline for submitting proposals, and the criteria that will be used to competitively select proposal respondents to apply for a grant from the approximately \$60 million available in Fiscal Year 2021 appropriations for this Program. The Fiscal Year 2021 National Defense Authorization Act established the following order of prioritization for community infrastructure projects under the Defense Community Infrastructure Program: enhancement of military value, enhancement of military installation resilience, and enhancement of military family quality of life. The Deputy Secretary of Defense approved this program on May 14, 2021. Proposals submitted under this notice must be construction-ready (able to "turn dirt") within the first twelve (12) months after award of a grant. Funds awarded through a grant are then

available are for expenditure within five (5) years from the date of the grant award, and all disbursements for expenditures must be concluded before the end of that five (5) year period.

The Office of Local Defense Community Cooperation may directly provide awards under this notice for projects owned by a State, local government, or a not-for-profit, member-owned utility service, or it may transfer funds to another Federal agency for award to one of these eligible entities. Entities other than those identified above as eligible to receive direct funding under this notice may partner with an eligible entity for project proposals.

SUPPLEMENTARY INFORMATION:

- a. Federal Awarding Agency: Office of Local Defense Community Cooperation, Department of Defense.
- b. Funding Opportunity Title: Defense Community Infrastructure Program.
- c. Announcement Type: Federal Funding Opportunity.
- d. Catalog of Federal Domestic Assistance (CFDA) Number: 12.600.

Dated: May 18, 2021.